

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

LAMEL BEST,

Plaintiff,

-against-

CITY OF NEW YORK, SERGIOMONTY
ANG, SHAZANA ZAMAN, MOHAMMAD
ABDELFATTAH, KEITH MEISNER,
ALEX RAMOS, and JOHN and JANE DOE
1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Kings County as place
of venue.**SUMMONS**The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 12, 2024
New York, New YorkYours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEKBy: _____**Michael Gluck, Esq.,**
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116
Attorneys for Plaintiff

Defendants:**CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**POLICE OFFICER SERGIOMONTY
ANG**

SHIELD NO. 17175
Housing Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

**POLICE OFFICER SHAZANA
ZAMAN**

SHIELD NO. 25125
Housing Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

**POLICE OFFICER MOHAMMAD
ABDELFATTAH**

SHIELD NO. 603
Housing Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

**POLICE OFFICER KEITH
MEISNER**

SHIELD NO. 7069
Housing Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

SERGEANT ALEX RAMOS

SHIELD NO 1480
Housing Police Service Area 3
25 Central Avenue
Brooklyn, New York 11206

Failure to respond will result in a judgment against you by default and interest from January 14, 2023.

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

LAMEL BEST,

Plaintiff,

-against-

CITY OF NEW YORK, SERGIOMONTY
ANG, SHAZANA ZAMAN, MOHAMMAD
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VERIFIED COMPLAINT

Plaintiff LAMEL BEST, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK,
complaining of the Defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the laws of the State of New York.
3. Jurisdiction is conferred by the laws of the State of New York.
4. On or about April 12, 2023, and within ninety (90) days after the claim arose, Plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon Defendants in accordance with General Municipal Law 50-e, and which set forth the following:
 - a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and Defendants have neglected and/or refused to make an adjustment and/or payment on Plaintiff's claim.

6. Pursuant to G.M.L. § 50-h, the City of New York examined Plaintiff LAMEL BEST on or about November 7, 2023.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff is a resident of the State of New York.

9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. The individual Defendants, at all relevant times, were employees of the NYPD and acting in the capacity of agent, servant and employee of Defendant City of New York and within the scope of their employment and under color of state law.

STATEMENT OF FACTS

11. On January 14, 2023, at approximately 8:00 p.m., Plaintiff was lawfully present in the lobby of 330 Bushwick Avenue in Brooklyn, New York when Defendants arrested and assaulted Plaintiff.

12. Without probable cause, reasonable suspicion or any legal justification, Defendants violently seized Plaintiff and handcuffed him in an unnecessarily and excessively tight manner.

13. Mr. Best was detained overnight and released without charges.

14. Plaintiff suffered physical injury, including to his arms and back as a result of the excessive force used by Defendants.

15. As a result of the foregoing, Plaintiff suffered, *inter alia*, loss of liberty, emotional distress, mental anguish, fear, pain, physical injury, anxiety, embarrassment, humiliation and damage to his reputation.

FIRST CLAIM **False Imprisonment**

16. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

17. By their conduct, as described herein, the individual Defendants are liable to Plaintiff for falsely imprisoning him.

18. Plaintiff was conscious of his confinement.

19. Plaintiff did not consent to his confinement.

20. Plaintiff's confinement was not otherwise privileged.

21. Defendant City of New York, as an employer of the individual Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

22. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein alleged.

SECOND CLAIM

Assault & Battery

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

24. By their conduct, as described herein, the Defendants are liable to Plaintiff for having assaulted and battered him.

25. Defendant CITY OF NEW YORK, as an employer of the individual Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

26. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

Negligence; Negligent Hiring/Training/Retention

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. Defendant City, through the NYPD, owed a duty of care to Plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to Plaintiff or to those in a like situation would probably result from the foregoing conduct.

29. Upon information and belief, all of the individual Defendants were unfit and incompetent for their positions.

30. Upon information and belief, Defendant City knew or should have known through the exercise of reasonable diligence that the individual Defendants were potentially dangerous.

31. Upon information and belief, Defendant City's negligence in screening, hiring, training, disciplining, and retaining these Defendants proximately caused each of Plaintiff's injuries.

32. Upon information and belief, Defendant City's negligence and the negligence of the individual Defendants, as agents of Defendant City, proximately caused Plaintiff's injuries.

33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. By reason of the foregoing, the Defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon Plaintiff.

36. The negligent (or intentional) infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

37. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon Plaintiff. Defendant City, as employer of each of the Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM

Violation of Plaintiff's 8-803 Rights

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. The actions of Defendants violated Plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

40. As such, immunity is not a defense to the violations of Plaintiff's rights and Plaintiff demands and is entitled to the relief described in Section 8-805.

41. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM
Bias-Based Profiling

42. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

43. In initiating law enforcement action against Mr. Best based on his actual and/or perceived race and/or color rather than Mr. Best's behavior or other information linking him to suspected unlawful activity the defendant officers engaged in bias-based profiling in violation of Section 14-151(c)(i) and (ii) of the Administrative Code of the City of New York.

44. Accordingly, Plaintiff is entitled to injunctive and declaratory relief, along with reasonable attorney's fees and costs.

WHEREFORE, Plaintiff LAMEL BEST demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against Defendants on all counts, along with reasonable attorney's fees and costs.

Dated: April 12, 2024
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: _____



Michael Gluck, Esq.
80 Pine Street, 38th Floor
New York, New York 10005
(P)(212) 532-1116
(F)(212) 532-1176

Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an associate of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the Plaintiff herein, affirms:

That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of her knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that Plaintiff does not presently reside within the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
April 12, 2024



Michael Gluck, Esq.